

THE MENTION OVERLAY – WHAT WAS SAID, AND WHAT WAS ADMITTED

WC/2024/227 – Cory Lea Shepherd v Workers' Compensation Regulator. Mention before Dwyer IC, 7 August 2026. Admissions of 8 September 2026.

Black is what was said at the mention. **Blue** is the text of a fact admitted by the Respondent on 8 September 2026 in answer to the notice to admit facts served 28 August 2026, word for word, with its number on that notice in brackets. Admissions are for this proceeding only, under rule 49 of the Industrial Relations (Tribunals) Rules 2011. **Red is navigation only. It is not evidence and it is not for service.**

■ **INTERNAL.** The spoken text is taken from a working transcript produced from the approved audio of the proceeding. It is **not a certified transcript**; the speaker labels are inferred and were measured at 90% against hand-checked anchors. Order the certified transcript before any passage is quoted externally. Nothing in this document is a criticism of the Commission; it is a record of what was asked and what now answers it.

1. 15:57 – the stressor read from the pleading, and the first question

DWYER IC: So your evidence is she had an erratic presence. What do you mean by that, Mr Shepherd? Well, this, and you explain what that is. ... imposed unassessed unilateral directives. How did she impose unassessed unilateral directives?

MR SHEPHERD: So, for instance, without consulting any of the staff members?

Admitted 8 September 2026:

[39] On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises." (Annexure A, Tab 1A)

[40] That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database." (Annexure A, Tab 1A)

[44] That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back". (Annexure A, Tab 1A)

[45] That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email." (Annexure A, Tab 1A)

[49] On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard". (Annexure A, Tab 6)

[51] That email states: "This new process is effective from today." (Annexure A, Tab 6)

[53] Ms Taylor signed that email as "A/Switchboard Manager". (Annexure A, Tab 6)

[54] Review Decision 69983 records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry." (Annexure A, Tab 25)

[273] The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024.

The two directives are now documents, admitted word for word, and the absence of any consultation document is admitted from the Respondent's own list. MADE OUT.

2. 16:11 – are they in writing

DWYER IC: Well, first of all, first of all, was this done by... How did she do it? By email? Are these things in writing?

Admitted 8 September 2026:

[40] That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database." (Annexure A, Tab 1A)

[50] That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised." (Annexure A, Tab 6)

[51] That email states: "This new process is effective from today." (Annexure A, Tab 6)

[52] That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours." (Annexure A, Tab 6)

[53] Ms Taylor signed that email as "A/Switchboard Manager". (Annexure A, Tab 6)

Yes, and the wording is admitted. MADE OUT.

3. 16:37 – a question of particulars

DWYER IC: Um, so you say, and perhaps it's a question of particulars, you say, um, imposed, unassessed unilateral directives. Do you mean by that, and tell me if I've got this wrong, that she sent emails in the form of a directive to staff?

MR SHEPHERD: Correct.

Admitted 8 September 2026:

[281] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 11: "The respondent does not admit the allegations in stressor 1(a) of the appellants statement, because there are no particulars or details to respond to."

[282] On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the Amended Form 9A and enclosing the documents recording it.

The pleading answer of 13 May 2026 was that there were no particulars to respond to. The particulars were served on 11 August 2026 and admitted on 8 September. That answer is spent. MADE OUT.

4. 17:38 – whether the disclosure holds them

DWYER IC: Okay. Does that include email communications from Ms Chloe Taylor to staff?

MS MATHESON: Yes, Commissioner. We've disclosed all we have currently.

DWYER IC: Okay. Have you examined those documents that have been disclosed to you, Mr Shepherd, to see whether or not it contains examples of these unassessed unilateral directives?

MR SHEPHERD: They do not. They're more just isolated towards me.

DWYER IC: You say there's nothing like that in what's been disclosed to you from the regulator?

MR SHEPHERD: Not that I can recall, no.

Admitted 8 September 2026:

[277] That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described as "Email: After hours on call process".

[278] That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: Task change switchboard - 19/04/2024".

[279] That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: MASPER process - 09/05/2024".

■ *The answer given on 7 August 2026 cannot be measured against the amended List of Documents, which is dated 14 August 2026 – one week after the mention. The list identifying the three emails at items 25, 26 and 27 did not then exist, and the Regulator had undertaken on 3 August to provide its updated list and the non-party copies "as soon as possible this week" - it arrived on 14 August 2026. What the admissions establish is that the documents were in the Respondent's hands, the Appellant having sent them to WorkCover on 29 and 30 August 2024. MADE OUT – and the delivery dates are the answer if the exchange is ever put.*

5. 18:31 – the starting point

DWYER IC: You see, making an order for a third party to disclose documents is a step sort of beyond what normally happens in disclosure. ... The starting point is to ask the regulator to produce those documents. Have you done that?

MR SHEPHERD: I have asked the regulator to produce what they have.

DWYER IC: Have you asked them to produce the unassessed unilateral directives?

MR SHEPHERD: Not those specific things, no.

■ *A written request was already outstanding, though not the narrower one directed. The Appellant had asked the Regulator for an up-to-date list of documents and for the non-party notices with the documents produced under each on 24 July 2026 - fourteen days before the mention. On 3 August the Regulator apologised for the delay and undertook to provide them "as soon as possible this week"; they arrived on 14 August 2026, seven days after the mention. The narrower step the bench directed - asking for the directives by description - had NOT been taken. But a written request was overdue on the day, and that was not said on the record. The later request of 9 September 2026 asks for the remaining documents by item; the reply of 10 September seeks until 25 September.*

6. 19:51 – how the stressor is proved

DWYER IC: the way in which you prove this, if you were going to prove this, is you would give evidence about the erratic movements of Chloe Taylor and then you would produce documentary evidence of the unassessed unilateral directives as you describe them. ... and that's the starting point.

Admitted 8 September 2026:

[55] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024.

[70] Review Decision 69983 records that in an email dated 23 August 2023 Ms Taylor "noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm". (Annexure A, Tab 25)

[72] That email states: "My hours would range from starting between 6-9am and finishing 2-5pm." (Annexure A, Tab 30)

[82] That email states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30." (Annexure A, Tab 9)

[83] That email of 17 May 2024 at 9:30 am states: "I will not be in the office until around 11am on Monday 20.05.2024". (Annexure A, Tab 9)

[86] That email of 18 June 2024 states: "I am sorry I haven't been there for you all over the past week." (Annexure A, Tab 30A)

[87] That email of 18 June 2024 states: "Ellen will not be in today, however Tammy is in the office if anything urgent." (Annexure A, Tab 30A)

Both halves are now documentary. The directives are admitted; and the presence he said would be oral evidence is in the manager's own emails, which state that her hours "can vary", that she would not be in until around 11 am, and, on 18 June 2024, "I am sorry I haven't been there for you all over the past week". MADE OUT, and stronger than the route he set.

7. 26:56 – what does unassessed mean

DWYER IC: She's your manager, right? ... So she's going to send you directions unilaterally. Anyway, you can be directed as an employee to do certain things, right? What do you mean by unassessed?

MR SHEPHERD: Unassessed would be that she wasn't even in the room or she doesn't even enter the room to see what's going on and makes a decision without any input of the staff.

DWYER IC: Like a manager. Managers make decisions without consulting staff all the time. It's totally legitimate.

Admitted 8 September 2026:

[267] That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant." (Annexure A, Tab 20)

[266] That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested." (Annexure A, Tab 20)

[263] By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training." (Annexure A, Tab 20)

[264] That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard." (Annexure A, Tab 20)

[265] That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants." (Annexure A, Tab 20)

[272] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.

[269] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.

[271] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.

This is the exchange the admissions change. The proposition is about the act of deciding. What is admitted is the absence of any assessment step at all: complaints are "managed solely via email or verbally with the complainant", there were "no 'consequential' changes to operating procedures", the fatigue records "do not exist", and assessment began only after 30 June 2024. On the employer's own description there was nothing to assess with. MADE OUT, on a different footing from the one put to him.

8. 27:28 and 29:17 – patient safety, raised twice

MR SHEPHERD: But I think when it's in a patient safety environment that they —

DWYER IC: If you think it's in a patient safety environment you can raise that. Anyway, let's not get into the case.

MR SHEPHERD: [at 29:17] so for me it was direct calls to this number but this number is an emergency contact and then those doctors, the ones that get called for an emergency, they're sent to the wrong side of the room, they're not sent to someone having a cardiac arrest, they're not sent to someone in respiratory distress

—: [5.7 second silence – the only long pause on the tape that reading a handed-up document does not explain]

DWYER IC: It's going to move on for a moment, okay? Because after my speech about efficiency of conduct of proceedings, I'm concerned at the direction this is going in, Mr Shepherd.

Admitted 8 September 2026:

[56] On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested to email you with the list of switchboard issues from yesterday and today". (Annexure A, Tab 8B)

[57] That email lists five occasions on 2 and 3 May 2024, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am, 11:43 am and 14:46. (Annexure A, Tab 8B)

[58] That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER". (Annexure A, Tab 8B)

[59] On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues 5th May to 8th of May". (Annexure A, Tab 8B)

[60] That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am. (Annexure A, Tab 8B)

[61] That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion. (Annexure A, Tab 8B)

[68] The occasions reported by Vivian Kwok on 3 and 8 May 2024 occurred while the after-hours on-call arrangement notified by Ms Taylor on 15 April 2024 was in force.

[69] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any communication was sent to Logan Switch or to the Switchboard staff concerning the occasions reported by Vivian Kwok at any time after 3 May 2024 and before 10:15 am on 9 May 2024.

[89] On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area." (Annexure A, Tab 11)

[91] On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues." (Annexure A, Tab 11)

Put twice, taken up neither time. It is now documentary and admitted: nine occasions of calls reaching the wrong team reported by a clinician, one of them the MET call team ringing to ask where the MET call was; the occasions fell while the 15 April arrangement was in force; and the Respondent does not allege anything was sent to the Switchboard about them for six days. MADE OUT on documents, not on assertion.

9. 28:04 – characterisation, and the test he set

DWYER IC: the argument might be about whether or not they're correctly categorised by you as unassessed directives made without consultation, you've placed subjectively a characterisation on these emails which may be contradicted, but the existence of the emails may not be in dispute as far as I can tell. ... And if you give evidence that you were sent unassessed directives by Ms Taylor, as you call them, and the regulator doesn't contradict it, doesn't cross-examine you, doesn't produce documents for you to comment on and that sort of thing, well, you know, that's a problem for them, not for you.

He was right about the characterisation, and it should go. On 8 September the Respondent admitted 298 of the 303 facts, not admitted five (154 and 228 to 231), denied none, and gave no reasons. The test he set is met on his own terms.

10. 34:43 – the communication book

DWYER IC: Unilateral destruction of work health and safety records. ... You're not going to need documents for that, are you? ... Did she physically tear the page out of a book? ... So maybe the book. So we can see the torn out page. But she might admit she tore it out, in which case we probably don't need the book.

Admitted 8 September 2026:

[143] The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 12(a): "admits that the Ms Taylor [sic] did remove pages from the Communication Book on or around 6 June 2023".

[146] That email states: "I was not aware of who put this entry in at the time but I took it out last week as it was clearly an indirect dig at the team and there is already a procedure to follow with this certain entry." (Annexure A, Tab 1B)

[147] That email states: "I just feel like it's being used as a 'burn book' more than a professional tool that switchboard can use to communicate." (Annexure A, Tab 1B)

[149] That email of 9:57 am states: "This is not used to simply put your point across or make any indirect comments towards the team." (Annexure A, Tab 1B)

[150] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the entry Ms Taylor removed from the Communication Book, or its author.

[151] That amended statement of facts and contentions, as presently constituted, does not allege that the removed page has been located, or that any copy of it exists.

[152] That amended statement of facts and contentions, as presently constituted, does not allege that any entry made by the Appellant remains in the Communication Book.

[154] The Respondent's amended List of Documents dated 14 August 2026 does not list the Communication Book, nor any page or entry from it. [NOT ADMITTED]

[288] In that response the Respondent admitted "that Ms Taylor removed a page from the workplace communications book", and did not admit that the page contained the Appellant's handwriting "because the respondent does not have a copy of the page". (Annexure A, Tab 27)

She has admitted it, in the pleading and again on 8 September. The page cannot be produced: the Respondent does not allege it has been located or that any copy exists, and the book is not on its list. Fact 154 was not admitted, and is not pressed. MADE OUT as to the removal; the manner of the exchange remains oral evidence, as he said.

11. 36:15 – the fatigue complaint in writing

DWYER IC: Refusal to investigate work health and safety fatigue complaints. Did you make a health and safety fatigue complaint in writing?

MR SHEPHERD: Yes, I made many.

DWYER IC: So you'll have a copy, or there should be a copy of an email to that effect?

Admitted 8 September 2026:

[242] Review Decision 69983 records: "You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024." (Annexure A, Tab 25)

[243] That decision records that in that email the Appellant "noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual agreement of regular rosters, employees were entitled to a minimum 10-hour break". (Annexure A, Tab 25)

[244] That decision records that Ms Taylor replied on 9 April 2024 and "added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this". (Annexure A, Tab 25)

[246] That decision records that on 24 April 2024 the Appellant emailed Ms Taylor and "expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment". (Annexure A, Tab 25)

[263] By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training." (Annexure A, Tab 20)

[264] That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard." (Annexure A, Tab 20)

[265] That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants." (Annexure A, Tab 20)

[269] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.

[270] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.

[271] The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.

The request, the escalation to Human Resources, the twenty-three day silence and the refusal are all admitted from the Respondent's own review decision, and the employer has stated in writing that the assessment records do not exist. MADE OUT, and the absence is admitted rather than asserted.

12. 40:13 – the email he did not have

DWYER IC: Ms Rees has given you a direction to retract a routine workplace email. How did she give you that direction? Is it in the form of an email?

MR SHEPHERD: Yes.

DWYER IC: Have you got that email?

MR SHEPHERD: No, I do not.

DWYER IC: Ms Matheson, have you got that email?

Admitted 8 September 2026:

[74] On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH_HR, with the subject "Office Hours and Departmental Directives", which states: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times". (Annexure A, Tab 9A)

[75] That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed." (Annexure A, Tab 9A)

[76] On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct". (Annexure A, Tab 9A)

[77] That reply of Ms Reese asked the Appellant to retract his email. (Annexure A, Tab 9A)

[78] On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours." (Annexure A, Tab 9A)

[79] On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chole's business hours I will follow up on the issues raised." (Annexure A, Tab 9B)

[80] That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?" (Annexure A, Tab 9B)

The whole exchange is now admitted word for word, both sides of it, including the reply of 21 May asking which changes and directives he was concerned about. MADE OUT.

13. 41:55 – the comparator

DWYER IC: Your case then tilts into a comparison. You say that a highly comparable email sent by Ms Taylor attracted no such discipline. Well, firstly, do you have a copy of the email from Ms Taylor that you're comparing to yours?

MR SHEPHERD: Correct, yes.

Admitted 8 September 2026:

[71] On 23 August 2023 at 2:18 pm Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, with the subject "What's Chloe's Hours?!", which states: "I am fulltime and work flex hours - You may have noticed recently I am starting at different times in the morning and finish at different times in the afternoon." (Annexure A, Tab 30)

[72] That email states: "My hours would range from starting between 6-9am and finishing 2-5pm." (Annexure A, Tab 30)

[81] On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, with the subject "Switchboard Manager - On call and Hours.", which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile." (Annexure A, Tab 9)

[82] That email states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30." (Annexure A, Tab 9)

[84] That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week." (Annexure A, Tab 9)

[113] Ms Taylor's email of 17 May 2024 at 9:30 am headed "Switchboard Manager - On call and Hours." included Mr Richard Parry among its recipients. (Annexure A, Tab 9)

Both emails are admitted. The comparison itself is argument, not fact, and is best left to be drawn from the two documents rather than pleaded.

14. 62:30 – what he said to go away and do

DWYER IC: Look closely at what you've got from the regulator in terms of disclosure to this point, and if you feel like there's still something that you can say for certainty exists ... If you're going to talk about those things that we talked about before, which was the unassessed directives or whatever, you might be on to something there. They might have an obligation to provide those. ... it seems to me that those are going to be more about the character of those emails as opposed to whether they were actually sent or not ... that particular point is the one area I think in all of what we've been through that there might be something to look at.

The existence half is closed by the admissions. The character half is where the appeal now sits, and the answer to it is not a better adjective: it is the admitted absence at item 7 above. That is the work the Second Amended Form 9A has to do.

What the Respondent did not admit, and the pattern in it

Five facts of 303 were not admitted: 154 (that the Communication Book is not on the amended List of Documents) and 228 to 231 (the entries in the 2024 Emergency Code Register for 17, 18 and 19 March 2024). Nothing was denied and no reasons were given.

Separately, on the Form 25, the authenticity of fourteen documents was disputed, among them Tab 6, Ms Taylor's email of 15 April 2024 as forwarded by the Appellant to WorkCover; Tab 31, the screen capture of the 2024 Emergency Code Register; Tab 1, the role description; Tab 20, Metro South Health's letter of 5 June 2026 to Commissioner Dwyer; and Tabs 22 and 23, the Consultation Paper and outcome.

The pattern is one line. Where the source is a document from the Respondent's own disclosure, the fact is admitted. Where the source is a document the Appellant captured or forwarded himself, the fact or the authenticity is not. The five not-admitted facts and most of the fourteen disputed tabs fall on that side of the line.

That does not unsettle what is made out. The wording of Ms Taylor's email of 15 April 2024 is admitted at facts 49 to 53 whatever happens to Tab 6, and the contents of the letter of 5 June 2026 are admitted at facts 263 to 268 whatever happens to Tab 20. An admission of fact under rule 49 binds for this proceeding independently of the authenticity of the page it came from. What the line does show is where the remaining work is: the register behind facts 228 to 231, and nothing else.